

**STATE OF MICHIGAN**  
IN THE UNITED STATES DISTRICT COURT, WESTERN DISTRICT OF MICHIGAN

**ANDREW JAMES PIGORS,**  
Plaintiff, appearing *pro se*,

Case No. **NEW**

v

**EMILY A. WATSON,**  
Defendant.

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**COMPLAINT — 42 USC §1983**

**UNITED STATES DISTRICT COURT**  
**WESTERN DISTRICT OF MICHIGAN**  
**SOUTHERN DIVISION**

*ANDREW JAMES PIGORS*, Plaintiff,

v. Case No.

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*HON. JENNY L. McNEILL*, in her individual capacity, *EMILY A. WATSON*,  
*RONALD BERRY*, *ALBERT WATSON*, *JURY TRIAL DEMANDED CODY*  
*WATSON*, *LORI WATSON*, *HON. KENNETH HOOPES*, in his individual capacity,  
*SHADY OAKS PARK MHP, LLC*, *HOMES OF AMERICA, LLC*, *ALDEN GLOBAL*  
*CAPITAL, LLC*, *JEREMY COX*, *TRAVIS PARTRIDGE*, *INDIVIDUAL BROWN*,  
Defendants.

**COMPLAINT FOR DEPRIVATION OF CIVIL  
RIGHTS UNDER 42 U.S.C. §§ 1983, 1985, 1988, FAIR  
HOUSING ACT VIOLATIONS UNDER 42 U.S.C. §  
3604, AND SUPPLEMENTAL STATE TORT CLAIMS**

Plaintiff Andrew James Pigors, proceeding pro se and in forma pauperis pursuant to 28 U.S.C. § 1915, respectfully submits this Complaint pursuant to 42 U.S.C. § 1983, 42 U.S.C. § 1985(3), 42 U.S.C. § 1988, 42 U.S.C. § 3604 (Fair Housing Act), and supplemental state tort claims under 28 U.S.C. § 1367, for the deprivation of rights secured by the First, Fourth, Sixth, and Fourteenth Amendments to the United States Constitution, for violations of the Fair Housing Act, and for state-law torts arising from the same nucleus of operative facts, and states as follows:

**I. PRELIMINARY STATEMENT**

1. This is a civil rights action arising from the systematic destruction of a father-child relationship by a state court judge acting under color of state law — aided by private co-conspirators — through a pattern of ex parte orders, retaliatory incarceration, and the wholesale denial of constitutionally required process.

2. Over a period exceeding two years, Defendant Hon. Jenny L. McNeill, a judge of the 14th Circuit Court, Muskegon County, Michigan, issued *24 of 55 orders (43.6%) on an ex parte basis* — all without notice to Plaintiff, all without an opportunity for Plaintiff to be heard, and all to Plaintiff's detriment. She

incarcerated Plaintiff for a combined *59 days* — including 45 days for the act of sending birthday messages to his child — muted him during hearings, refused to review exculpatory evidence, imposed a \$250 bond to block his access to the courts, and told Plaintiff: “*Do not file anymore, I will not look at it.*”

3. As a direct result, Plaintiff has been *completely separated from his child, L.D.W., for more than 248 consecutive days* — with zero contact, zero visitation, and zero parenting time — constituting a de facto termination of the parent-child relationship without any of the constitutional protections the Due Process Clause demands. This prolonged separation occurred despite objectively exculpatory evidence: Plaintiff’s drug screen returned *negative*, his initial HealthWest psychological evaluation returned *all zeros* (no clinical findings), and *multiple police investigations* into allegations made by the Watson family resulted in *zero substantiated findings* against Plaintiff.

4. Plaintiff lost *two jobs* and *two homes* as a direct result of the 59 days of incarceration imposed without constitutionally adequate process.

5. This Complaint does not seek to appeal or overturn the substance of any state court custody determination. Plaintiff challenges the *process* — or complete absence thereof — by which Defendants deprived him of constitutionally protected fundamental liberty interests. The injury is the absence of process, not the outcome of any proceeding.

## II. JURISDICTION AND VENUE

6. This Court has subject matter jurisdiction pursuant to *28 U.S.C. § 1331* (federal question jurisdiction) because this action arises under the Constitution and laws of the United States, specifically *42 U.S.C. § 1983*, *42 U.S.C. § 1985(3)*, *42 U.S.C. § 1988*, and *42 U.S.C. § 3604* (Fair Housing Act).

6a. This Court has independent subject matter jurisdiction over the Fair Housing Act claims pursuant to *42 U.S.C. § 3613(a)(1)(A)*, which authorizes an aggrieved person to commence a civil action in an appropriate United States district court to obtain appropriate relief with respect to a discriminatory housing practice under *42 U.S.C. § 3604*.

7. This Court has additional jurisdiction pursuant to *28 U.S.C. § 1343(a)(3)* and *(a)(4)*, which confer jurisdiction over civil rights actions seeking to redress the deprivation, under color of state law, of rights secured by the Constitution and by Acts of Congress providing for equal rights.

8. Venue is proper in the *Southern Division of the Western District of Michigan* pursuant to *28 U.S.C. § 1391(b)* because a substantial part of the events giving rise to Plaintiff's claims occurred in Muskegon County, Michigan, which lies within this Division, and all Defendants reside and/or conduct business within this District.

9. This Court is authorized to award compensatory damages, punitive damages, declaratory relief, injunctive relief, and reasonable costs pursuant to *42 U.S.C. § 1988*, *Fed. R. Civ. P. 54(d)*, and *28 U.S.C. § 1920*.

9a. This Court has *supplemental jurisdiction* over Plaintiff’s state-law tort claims (Counts IX through XVI) pursuant to 28 U.S.C. § 1367(a) because they arise from the same case or controversy — the identical nucleus of operative facts — as Plaintiff’s federal claims. The state tort claims derive from the same coordinated campaign of deprivation, conspiracy, and abuse that underlies the federal civil rights claims. Exercising supplemental jurisdiction serves judicial economy, convenience, and fairness, as the state claims share common witnesses, evidence, and the same core factual narrative. The Fair Housing Act claims (Count XVIII) and housing conspiracy claims (Count XVII) arise from the same coordinated scheme to deprive Plaintiff of housing and thereby destroy his custody standing.

10. Plaintiff proceeds in forma pauperis pursuant to 28 U.S.C. § 1915. An Application to Proceed In Forma Pauperis (AO 239) is filed contemporaneously with this Complaint.

11. Plaintiff is proceeding pro se. This Complaint is entitled to liberal construction under *Haines v. Kerner*, 404 U.S. 519 (1972), and *Erickson v. Pardus*, 551 U.S. 89 (2007), which hold that pro se filings are to be held to “less stringent standards than formal pleadings drafted by lawyers” and are not to be dismissed without the opportunity to amend. *See also Estelle v. Gamble*, 429 U.S. 97, 106 (1976).

### III. PARTIES

#### A. Plaintiff

11. *Andrew James Pigors* is a natural person and citizen of the State of Michigan, residing at 1977 Whitehall Road, Lot 17, North Muskegon, Michigan 49445.

Telephone: (231) 903-5690. Email: andrewjpigors@gmail.com. Plaintiff is the biological father of the minor child L.D.W. and possesses a fundamental constitutional liberty interest in the care, custody, and companionship of his child, protected by the Due Process Clause of the Fourteenth Amendment. *Troxel v. Granville*, 530 U.S. 57, 65 (2000); *Stanley v. Illinois*, 405 U.S. 645 (1972).

#### B. Defendants

12. *Hon. Jenny L. McNeill (P-58235)* is, and at all relevant times was, a judge of the 14th Circuit Court, Family Division, Muskegon County, Michigan. McNeill is sued in her *individual capacity only* for acts taken in the clear absence of all jurisdiction and for non-judicial acts falling outside the scope of judicial immunity. *Mireles v. Waco*, 502 U.S. 9, 11–12 (1991); *Stump v. Sparkman*, 435 U.S. 349, 356–57 (1978). At all relevant times, McNeill acted under color of state law within the meaning of 42 U.S.C. § 1983. *West v. Atkins*, 487 U.S. 42, 49 (1988).

13. *Emily A. Watson* is a natural person and citizen of the State of Michigan, residing at 2160 Garland Drive, Norton Shores, Michigan 49441. Watson is the biological mother of L.D.W. is a private party who, acting in concert with a state judicial officer, conspired to deprive Plaintiff of his constitutional rights under color of state law. A private party who conspires with a state actor to deprive

another of constitutional rights acts under color of state law and is independently liable under 42 U.S.C. § 1983 and 42 U.S.C. § 1985(3). *Dennis v. Sparks*, 449 U.S. 24, 27–28 (1980); *Adickes v. S.H. Kress & Co.*, 398 U.S. 144 (1970).

14. *Ronald Berry* is a natural person residing in or around Muskegon County, Michigan. Berry is the boyfriend and domestic partner of Defendant Watson. *Berry is not an attorney*. Berry is a private party who participated in the conspiracy to deprive Plaintiff of his constitutional rights by drafting legal filings on Watson’s behalf — constituting the unauthorized practice of law — which were then filed and acted upon by the court. Berry’s direct involvement in ex parte contacts with the court, including documented voicemail communications (Item #6, ex parte objection table), constitutes overt acts in furtherance of the conspiracy. *Dennis v. Sparks*, 449 U.S. 24 (1980).

14a. *Albert Watson* is a natural person and resident of Muskegon County, Michigan. Albert Watson is the father of Defendant Emily A. Watson. On or about *October 20, 2024*, Albert Watson forcibly removed the minor child L.D.W. from Plaintiff’s arms during a parenting time exchange, threw Personal Protection Order papers through the window of Plaintiff’s vehicle stating “Haha, now you’re served,” and thereby physically assaulted Plaintiff while facilitating Defendant Watson’s withholding of L.D.W. from October 20, 2024 through November 15, 2024 — a period of 26 days encompassing L.D.W.’s birthday and Halloween. In *November 2023*, Albert Watson physically assaulted Plaintiff in an incident captured on video. Albert Watson conspired with Defendants Watson and Berry to

deprive Plaintiff of his constitutional rights and is independently liable under 42 U.S.C. § 1985(3) and state tort law. *Griffin v. Breckenridge*, 403 U.S. 88, 102–03 (1971).

14b. *Cody Watson* is a natural person and resident of Muskegon County, Michigan. Cody Watson is the brother of Defendant Emily A. Watson. Cody Watson is a named third-party violator of the Personal Protection Order, having sent threatening text messages to Plaintiff as a proxy for Defendant Watson — documented in Police Report MCSD-2024-02101 (Officer Hintz). Cody Watson pays Defendant Watson’s rent — a fact admitted by Watson at the custody trial — constituting undisclosed income relevant to the child support proceedings and demonstrating financial coordination in the conspiracy. Cody Watson directed Tamara Snider to stalk Plaintiff’s business on Nextdoor. Cody Watson conspired with Defendants to deprive Plaintiff of his constitutional rights.

14c. *Lori Watson* is a natural person and resident of Muskegon County, Michigan. Lori Watson is the mother of Defendant Emily A. Watson. On or about *March 26, 2024*, Lori Watson participated in the forcible withholding of L.D.W. from Plaintiff during the first withholding period, issuing ultimatums and facilitating Defendant Watson’s unilateral denial of Plaintiff’s parenting time. Lori Watson participated in the October 2024 PPO service ambush alongside Albert Watson. Lori Watson conspired with Defendants to deprive Plaintiff of his constitutional rights.

14d. *Hon. Kenneth Hoopes* is, and at all relevant times was, a judge of the 14th Circuit Court, Muskegon County, Michigan, assigned to the Civil Division. Hoopes is sued in his *individual capacity only* for acts taken in the clear absence of all jurisdiction and for non-judicial acts falling outside the scope of judicial immunity. *Mireles v. Waco*, 502 U.S. 9, 11–12 (1991). *Hoopes was a former law partner of Defendant McNeill at the firm Ladas, Hoopes & McNeill, located at 435 Whitehall Road, Muskegon, Michigan — the same street on which Plaintiff resides. Despite this disqualifying conflict of interest, Hoopes presided over Plaintiff’s housing case (Case No. 2025-002760-CZ), dismissed it with prejudice, denied Plaintiff’s motion to stay eviction, and thereby facilitated the destruction of Plaintiff’s housing — all while his former law partner McNeill was simultaneously stripping Plaintiff of custody in the Family Division. Hoopes acted under color of state law within the meaning of 42 U.S.C. § 1983. West v. Atkins*, 487 U.S. 42, 49 (1988).

14e. *Shady Oaks Park MHP, LLC* is a Michigan limited liability company that owns and operates the Shady Oaks Mobile Home Park located at Whitehall Road, North Muskegon, Michigan 49445, where Plaintiff resided at Lot #17. Upon information and belief, Shady Oaks Park MHP, LLC is the successor entity to Shady Oaks MHP, LLC, which was administratively dissolved by the Michigan Department of Licensing and Regulatory Affairs in 2022. The use of a dissolved entity to initiate eviction proceedings constitutes fraud upon the court. Shady Oaks Park MHP, LLC’s registered address is PO Box 1908, Crested Butte, CO 81224.

14f. *Homes of America, LLC* is a Delaware limited liability company doing business in the State of Michigan. Homes of America, LLC is the management company that assumed operational control of the Shady Oaks Mobile Home Park. On July 14, 2025, Cassandra Van Dam, acting as a representative, confirmed that “Homes of America” — not Shady Oaks — controlled the park’s operations. Homes of America, LLC is an instrumentality and subsidiary of Defendant Alden Global Capital, LLC. Homes of America, LLC participates in a nationwide business model of acquiring manufactured home communities, dramatically increasing lot rents and fees, minimizing maintenance, harassing residents with punitive rules and eviction threats, and profiting from the displacement of vulnerable residents — including families with minor children.

14g. *Alden Global Capital, LLC* is a New York-based private equity firm that, upon information and belief, is the ultimate parent and controlling entity of both Homes of America, LLC and Shady Oaks Park MHP, LLC, operating through layered corporate shells including but not limited to Partridge Securities LLC, Partridge Equity LLC, VRM Capital Corp, and Smith Management LLC. Alden Global Capital controls Homes of America’s asset management policies, rent escalation practices, maintenance deferral protocols, and tenant displacement strategies. The layered corporate structure is designed to insulate Alden Global Capital from liability while extracting maximum revenue from vulnerable manufactured home residents. Alden Global Capital’s role as the ultimate decision-maker and beneficiary of the policies that caused Plaintiff’s eviction, lockout, and

property destruction makes it directly liable as a principal under agency law and as a participant in the conspiracy.

14h. *Jeremy Cox* is a natural person who, upon information and belief, acted as a manager, agent, and/or representative of Defendant Homes of America, LLC and/or Defendant Shady Oaks Park MHP, LLC in connection with the eviction proceedings, lockout, property removal, and destruction at issue in this Complaint. Cox participated in and directed the unlawful entry into Plaintiff's home, the drilling of locks, the removal and destruction of Plaintiff's personal property, and the assertion that Plaintiff's titled manufactured home was "abandoned" — despite Plaintiff's continuing title ownership.

14i. *Travis Partridge* is a natural person who, upon information and belief, served as the on-site park manager of the Shady Oaks Mobile Home Park during the relevant period. Partridge acted as an agent of Defendants Homes of America, LLC and/or Shady Oaks Park MHP, LLC. Partridge participated in and facilitated the retaliatory eviction proceedings against Plaintiff, communicated false claims of "abandonment" to prospective buyers of Plaintiff's titled manufactured home, blocked Plaintiff's attempts to sell his home, and coordinated with Defendants Cox and Brown to effectuate the July 17, 2025 lockout and property destruction. Partridge texted prospective buyers with false information that Plaintiff's home had been "abandoned," thereby sabotaging Plaintiff's ability to mitigate his losses through a private sale of his titled property.

14j. *Individual Brown* is a natural person who, upon information and belief, acted as a maintenance worker, agent, and/or representative of Defendant Homes of America, LLC and/or Defendant Shady Oaks Park MHP, LLC during the relevant period. Brown participated in and facilitated the July 17, 2025 forced entry into Plaintiff's manufactured home, the drilling of locks, and the removal and/or destruction of Plaintiff's personal property. Brown's identity is known to Defendants; Plaintiff will amend this Complaint to identify Brown by full legal name upon discovery.

15. At all relevant times, Defendant McNeill and Defendant Hoopes acted under color of state law within the meaning of 42 U.S.C. § 1983. Defendants Watson, Berry, Albert Watson, Cody Watson, Lori Watson, Shady Oaks Park MHP LLC, Homes of America LLC, Alden Global Capital LLC, Jeremy Cox, Travis Partridge, and Individual Brown, by conspiring with Defendants McNeill and Hoopes and among themselves, likewise acted under color of state law with respect to the § 1983, § 1985(3), and § 3604 claims, and are independently liable under state tort law. *Dennis v. Sparks*, 449 U.S. 24 (1980); *Adickes v. S.H. Kress & Co.*, 398 U.S. 144 (1970). The private corporate Defendants and their agents willfully participated in joint activity with state actors — namely, utilizing the judicial process to effectuate an unlawful eviction and property destruction in coordination with the custody proceedings — thereby satisfying the joint-action test for § 1983 liability. *Lugar v. Edmondson Oil Co.*, 457 U.S. 922, 941 (1982).

## IV. FACTUAL ALLEGATIONS

### A. Background and Custody History

16. Plaintiff is the father of L.D.W., a minor child born in 2021. Plaintiff has at all relevant times exercised his parental rights and maintained a strong, loving bond with L.D.W. The fundamental right of a parent to the care, custody, and companionship of his child is “perhaps the oldest of the fundamental liberty interests recognized by this Court.” *Troxel v. Granville*, 530 U.S. 57, 65 (2000).

17. On *April 1, 2024*, Plaintiff filed a custody action in the 14th Circuit Court, Muskegon County, Michigan, Case No. 2024-001507-DC. The case was assigned to Judge Jenny L. McNeill.

18. A related Personal Protection Order proceeding, Case No. 2023-5907-PP, was also assigned to Judge McNeill. The PPO had been filed by Defendant Watson on *December 3, 2023*, and was *granted the same day on an ex parte basis* — without notice to Plaintiff and without an evidentiary hearing.

### B. The 50/50 Arrangement That Worked

19. From *May 5, 2024 through July 17, 2025* — a period of approximately *438 days* — Plaintiff and Watson operated under a 50/50 shared custody arrangement. During this entire period, the arrangement functioned successfully. The court’s own records reflect no emergency, no danger, and no basis for the wholesale disruption that followed.

### C. First Withholding of the Child

20. From *March 26, 2024 through May 5, 2024* — a period of approximately *40 days* — Defendant Watson unilaterally withheld L.D.W. from Plaintiff without any

court order authorizing the withholding and without any finding of danger or emergency. This constituted the first deprivation of Plaintiff's parenting time.

**D. Ex Parte Destruction of the 50/50 Arrangement**

21. On *July 17, 2025*, Judge McNeill entered an ex parte order awarding Defendant Watson *100% custody* of L.D.W., destroying the 438-day 50/50 arrangement without notice to Plaintiff and without any hearing.

22. On *August 8, 2025*, Judge McNeill entered a same-day ex parte order *completely suspending ALL of Plaintiff's parenting time* with L.D.W. This order was entered:

- &emsp;(a) Without prior notice to Plaintiff;
- &emsp;(b) Without service of any motion upon Plaintiff before entry;
- &emsp;(c) Without sworn facts demonstrating imminent danger as required by MCR 3.207(C)(2);
- &emsp;(d) Without an evidentiary hearing;
- &emsp;(e) Without findings of fact under MCL 722.23 or MCL 722.27.

23. Plaintiff arrived at the scheduled parenting exchange on August 8, 2025, with no knowledge that any ex parte motion had been filed or that any order had been entered. He was denied contact with his child without any opportunity to be heard.

24. From *July 29, 2025 through the present* — a period exceeding 248 *consecutive days* as of the filing of this Complaint — Plaintiff has been *completely separated* from L.D.W., with zero contact, zero visitation, and zero parenting time.

This constitutes a de facto termination of the parent-child relationship without any of the constitutional protections required by *Santosky v. Kramer*, 455 U.S. 745 (1982).

#### **E. The Systematic Pattern of Ex Parte Deprivation**

25. Throughout the underlying state court proceedings, Judge McNeill has entered *24 of 55 orders (43.6%) on an ex parte basis* — all without notice to Plaintiff, all without an opportunity for Plaintiff to be heard, and all to Plaintiff’s detriment. This is not an isolated occurrence but a systematic and deliberate pattern of adjudicating Plaintiff’s most fundamental rights without affording him any opportunity to be heard.

26. On *August 8, 2025 alone*, Judge McNeill entered *five (5) ex parte orders on a single day*, suspending ALL of Plaintiff’s parenting time. Five ex parte orders in a single day, all adverse to a single party, is not the exercise of judicial discretion — it is a coordinated deprivation.

#### **F. Show Cause Proceeding — November 15, 2024 (14 Days Incarceration)**

27. On *November 15, 2024*, Judge McNeill presided over a Show Cause proceeding against Plaintiff. At this hearing:

&emsp;(a) Plaintiff was *muted three (3) separate times* during the proceeding, physically preventing him from presenting his defense;

&emsp;(b) The hearing was conducted *remotely* while Plaintiff was simultaneously required to appear at a *different court hearing* in a separate case, creating an impossible conflict that denied Plaintiff meaningful participation;

&emsp;(c) Judge McNeill *refused to review an exculpatory police report* (Report No. NS2505044) which directly contradicted the allegations forming the basis of the show cause proceeding;

&emsp;(d) Plaintiff was *denied the right to present a defense*;

&emsp;(e) Judge McNeill found Plaintiff in contempt and imposed *14 days of incarceration* in the Muskegon County Jail.

28. The 14-day incarceration was imposed without a finding of probable cause, without appointment of counsel despite the threat of incarceration (in violation of *Mead v. Batchlor*, 435 Mich. 480 (1990); *In re Contempt of Henry*, 282 Mich. App. 656 (2009)), and without a meaningful opportunity for Plaintiff to be heard.

#### **G. Show Cause Proceedings — November 26, 2025 (45 Days Incarceration)**

29. On *November 26, 2025*, Judge McNeill presided over Show Cause Proceedings #6 and #7 against Plaintiff. The basis for these proceedings was that Plaintiff had sent *birthday messages* to his child L.D.W. through the court-approved AppClose communication platform.

30. Birthday messages from a parent to a child constitute protected parent-child speech under the First Amendment. A father's birthday wishes to his child are quintessential protected expression. *Troxel v. Granville*, 530 U.S. 57 (2000).

31. Judge McNeill found Plaintiff in contempt and imposed *45 days of incarceration* — more than three times the sentence for the prior contempt finding

— solely because Plaintiff sent birthday messages to his child. This sentence was imposed:

&emsp;(a) Without a finding that the birthday messages caused any harm to L.D.W.;

&emsp;(b) Without a finding of probable cause;

&emsp;(c) Without appointment of counsel despite the threat of incarceration;

&emsp;(d) As direct punishment for the exercise of protected First Amendment speech.

32. The 45-day sentence for birthday messages creates a *chilling effect* on all parental communication between Plaintiff and L.D.W. A reasonable parent in Plaintiff’s position would be deterred from any communication with his child, no matter how innocuous, for fear of further incarceration.

#### **H. “Do Not File Anymore” — Retaliatory Denial of Access**

33. At a hearing, Judge McNeill stated to Plaintiff, in substance: “*Do not file anymore, I will not look at it.*” This statement constitutes a direct, retaliatory refusal to perform the judicial function of reviewing a litigant’s filings — a refusal motivated by Plaintiff’s exercise of his constitutional right to petition the court for redress of grievances.

34. This directive, combined with the \$250 bond imposed on each new motion, created a *complete denial of access to the courts* — Plaintiff was told his

filings would not be reviewed and was financially barred from filing even if he wished to.

### **I. The \$250 Bond — Financial Barrier to Court Access**

35. In May 2025, Judge McNeill imposed a *\$250 bond requirement on each new motion* filed by Plaintiff. This financial barrier was imposed in direct response to Plaintiff's exercise of his right to petition the court for restoration of parenting time.

36. The bond effectively bars Plaintiff — who proceeds in forma pauperis — from filing any motions to restore parenting time, challenge the ex parte orders, or otherwise access the courts to protect his fundamental liberty interest in his child. Combined with the ex parte suspension, the bond creates a complete deprivation with no available remedy.

### **J. Self-Ruling on Disqualification**

37. Plaintiff filed a motion for disqualification of Judge McNeill under MCR 2.003(C), citing the pattern of ex parte orders, bias, and hostile treatment. Under MCR 2.003(D), the Chief Judge — not the challenged judge — must decide a disqualification motion when the challenged judge does not grant it.

38. Judge McNeill *ruled on her own disqualification motion* and denied it, in violation of MCR 2.003(D). This act was non-judicial in character — it was an administrative decision that the court rules assign to a different judicial officer.

### **K. Disparate Treatment**

39. Judge McNeill's treatment of Plaintiff versus Watson demonstrates systematic disparate treatment:

|                           |                                                 |                                                |
|---------------------------|-------------------------------------------------|------------------------------------------------|
| <b>Category</b>           |                                                 |                                                |
| <b>Father (Plaintiff)</b> |                                                 |                                                |
| <b>Mother (Watson)</b>    |                                                 |                                                |
| Ex parte orders           | 24 of 55 orders entered against Father ex parte | Zero sanctions for false ex parte filings      |
| Evidence consideration    | Court refused to view exculpatory evidence      | Court accepted unsworn, unverified allegations |
| Filing rights             | \$250 bond imposed; told “Do not file anymore”  | No restrictions on Watson’s filings            |
| Hearing access            | Muted/silenced at hearings                      | Full opportunity to be heard                   |
| Contempt findings         | Multiple contempt findings, 59 days jail        | Zero contempt findings despite violations      |
| Sanctions                 | Multiple sanctions imposed                      | Zero sanctions                                 |
| Parenting time            | 100% suspended for 248+ days                    | 100% awarded without hearing                   |

40. This one-directional pattern of adverse treatment — 100% of ex parte orders entered against the Father, 0% of sanctions imposed on the Mother — cannot be explained by any legitimate government interest and is indicative of impermissible bias.

### **L. HealthWest Evaluation Tampering**

46A. On or about September 2025, Judge McNeill ordered Plaintiff to undergo a mental health evaluation at HealthWest. The *first evaluation returned “all zeros”*

— no clinical findings, no diagnoses, no concerns. This result was inconsistent with the narrative advanced by Defendant Watson in her ex parte motions.

46B. Following this unfavorable (to Watson) result, Judge McNeill sent a *biasing letter to the HealthWest evaluator* containing information and framing that was not part of the original evaluation referral. After receiving this letter, the evaluator issued a *second evaluation* that, for the first time, included a “Rule Out” finding — a material change from the first evaluation’s clean result.

46C. This judicial interference with a purportedly neutral evaluation constitutes a violation of due process. A judge who communicates ex parte with an evaluator to influence the outcome of a court-ordered assessment acts in violation of Canon 3(A)(4) of the Michigan Code of Judicial Conduct and deprives the subject of a fair evaluation. *Ward v. Village of Monroeville*, 409 U.S. 57 (1972); *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868 (2009).

#### **M. Illegally Obtained Evidence — Felony Eavesdropping**

46D. The ex parte order of August 8, 2025, suspending all of Plaintiff’s parenting time, was based in substantial part on a *recording made by Lori Watson* (Defendant Watson’s mother) *in violation of MCL 750.539c* — Michigan’s felony eavesdropping statute, which requires all-party consent. The recording was made without Plaintiff’s knowledge or consent and constitutes a felony punishable by up to two years’ imprisonment.

46E. Evidence obtained through a felony cannot form the basis of a court order. Under the exclusionary rule and the fruit-of-the-poisonous-tree doctrine, the

illegally obtained recording — and all orders derived from it — are constitutionally infirm. *Mapp v. Ohio*, 367 U.S. 643 (1961); *Wong Sun v. United States*, 371 U.S. 471 (1963). Under Michigan law, *People v. Beavers*, 393 Mich. 554 (1975), confirms the application of these principles to recordings obtained in violation of MCL 750.539c.

46F. The August 8, 2025 ex parte order, to the extent it was based on this illegally obtained recording, is fruit of the poisonous tree and constitutionally void.

#### **N. Watson’s Pattern of False Allegations Contradicted by Objective Evidence**

46G. The record, as compiled from court filings, hearing transcripts, and contemporaneous communications, reveals a systematic pattern of false allegations by Defendant Watson, each of which was contradicted by objective evidence:

&emsp;(a) *False allegation — Father is dangerous/abusive*: Watson filed multiple PPO and custody motions alleging that Plaintiff posed a danger to L.D.W. Yet Watson simultaneously sent *124 cooperative messages* through the court-approved AppClose communication platform, proposing shared schedules and discussing normal co-parenting. A parent who genuinely believed her child was in danger would not engage in cooperative co-parenting communications;

&emsp;(b) *False allegation — Substance abuse*: Watson alleged in court filings that Plaintiff had substance abuse issues. Plaintiff’s drug screen returned *negative* — directly contradicting Watson’s allegations;

&emsp;(c) *False allegation — Mental health concerns*: Watson alleged that Plaintiff had mental health issues requiring evaluation. The HealthWest evaluation

#1 returned *all zeros* — no clinical findings whatsoever. Only after Judge McNeill’s biasing letter to the evaluator did a second evaluation produce a tentative “Rule Out” notation;

&emsp;(d) *False allegation — Safety risk to child*: Watson alleged in multiple filings that Plaintiff posed a safety risk to L.D.W. and sought supervised visitation. *Nine (9) separate police investigations* into Watson’s allegations resulted in *zero findings* against Plaintiff;

&emsp;(e) *Concealed expertise in system manipulation*: Watson was employed for *nine (9) years* in the *Kent County Prosecutor’s Office, Family Court Division* — giving her extensive insider knowledge of family court procedures, filings, and strategies. This expertise was not disclosed to the court and was used to weaponize the court system against Plaintiff.

46H. These contradictions, taken together, establish that Watson’s *ex parte* motions were filed with knowledge that the underlying allegations were false or, at minimum, recklessly indifferent to their truth — supporting both the conspiracy claim under § 1985(3) and the substantive due process claim that the deprivation was based on fabricated evidence.

### **O. The Watson–McNeill–Berry Conspiracy**

41. A documented temporal coordination pattern establishes a conspiracy among the Defendants:

&emsp;(a) *Watson files* a motion or allegation;

&emsp;(b) *McNeill* rules on it *the same day* or within 24–48 hours — all without notice to Plaintiff;

&emsp;(c) *Berry* assists Watson in preparing filings as a non-attorney, constituting unauthorized practice of law.

42. This pattern has repeated across months and is documented through temporal analysis of docket entries in the state court record. The probability that this one-directional coordination occurred by coincidence is negligible.

43. The PPO (Case No. 2023-5907-PP) was weaponized in coordination with the custody action (Case No. 2024-001507-DC). The PPO was filed by Watson on December 3, 2023, and granted the same day *ex parte*. Subsequent PPO enforcement was used to incarcerate Plaintiff for protected speech (birthday messages), reinforcing the custody deprivation.

44. Ronald Berry’s voicemail to Plaintiff (Item #6, *ex parte* objection table) constitutes *direct evidence* of Berry’s participation in communications outside the formal court record.

45. Ronald Berry — who is not an attorney — drafted substantive legal filings on Watson’s behalf, which were filed and acted upon by the court. This constitutes unauthorized practice of law and evidences the coordinated, extrajudicial nature of the conspiracy.

#### **P. PPO Guilty Plea — October 18, 2025**

46. On *October 18, 2025*, Plaintiff entered a guilty plea related to the PPO proceeding. Plaintiff does not challenge the validity of this plea or the underlying

conviction in this action. Plaintiff challenges only the *process* by which he was incarcerated and deprived of his parental rights — not the outcome of any adjudication. This distinction is critical to the *Heck v. Humphrey* analysis set forth in the Preemptive Doctrinal Defenses section below.

#### **Q. Exhaustion of Available Remedies**

47. Plaintiff has pursued every available state remedy:

- &emsp;(a) *Motion for Reconsideration* in 14th Circuit Court — denied;
- &emsp;(b) *Motion to Restore Parenting Time* — denied;
- &emsp;(c) *Motion for Disqualification* — McNeill self-ruled and denied (violating MCR 2.003(D));
- &emsp;(d) *Appeal of Right* (COA 366810) — filed and pending for months with no action;
- &emsp;(e) \$250 bond now blocks ALL further filings in the lower court;
- &emsp;(f) “*Do not file anymore*” — the judge affirmatively stated she would not review Plaintiff’s submissions.

48. Each remedy has proven inadequate. Exhaustion of state remedies is not required for actions under 42 U.S.C. § 1983. *Patsy v. Board of Regents*, 457 U.S. 496, 516 (1982); *Monroe v. Pape*, 365 U.S. 167 (1961). The federal remedy is supplementary to any available state remedy.

#### **R. Damages Suffered**

49. As a direct and proximate result of Defendants’ conduct, Plaintiff has suffered the following injuries:

&emsp;(a) *59 days of incarceration* (14 days on November 15, 2024, plus 45 days on November 26, 2025) — deprivation of liberty without constitutionally adequate process;

&emsp;(b) *Loss of two (2) jobs* as a direct result of incarceration;

&emsp;(c) *Loss of two (2) homes* as a direct result of incarceration and resulting inability to pay rent;

&emsp;(d) *248+ consecutive days* of complete separation from L.D.W. (ongoing), constituting the destruction of the parent-child bond during a critical developmental period;

&emsp;(e) Severe emotional distress, anxiety, depression, and psychological harm arising from the loss of his child, wrongful incarceration, and ongoing deprivation;

&emsp;(f) Economic losses including lost wages, lost employment opportunities, housing costs, court costs, and transportation expenses;

&emsp;(g) The continuing chilling effect on Plaintiff's right to communicate with his child and to petition the courts for redress.

### **S. Housing Destruction and Coordinated Displacement**

49a. Plaintiff is the titled owner of a manufactured home located at Lot #17, 1977 Whitehall Road, North Muskegon, Michigan 49445, within the Shady Oaks Mobile Home Park. Plaintiff purchased this home, invested between \$23,700 and \$48,750 in improvements — including plumbing repairs (\$4,000–\$8,000), bathroom renovation (\$1,500–\$4,300), and additional structural and utility upgrades — and

maintained it as his primary residence and the established custodial environment for L.D.W. during Plaintiff's parenting time.

49b. *Corporate Chain of Control.* Defendant Shady Oaks Park MHP, LLC is the legal owner of the mobile home park. However, upon information and belief, it is Defendant Homes of America, LLC that assumed operational management of the park and directed all material decisions concerning rent increases, eviction proceedings, maintenance obligations, and tenant relations. On *July 14, 2025*, Cassandra Van Dam, a Homes of America representative, confirmed that Homes of America — not Shady Oaks — controlled park operations. Both entities are ultimately owned and controlled by Defendant Alden Global Capital, LLC, a New York-based private equity firm, operating through a web of intermediate entities including Partridge Securities LLC, Partridge Equity LLC, VRM Capital Corp, and Smith Management LLC.

49c. *Retaliatory Eviction.* Beginning in late 2024, Defendants Shady Oaks and Homes of America — through their agents including Defendant Jeremy Cox — initiated eviction proceedings against Plaintiff. On *May 27, 2025*, Defendant Hoopes, sitting as a circuit court judge in Case No. 2025-002760-CZ, entered an eviction order against Plaintiff. Defendant Hoopes did so despite his disqualifying conflict of interest as the former law partner of Defendant McNeill and despite the interrelation of the housing and custody proceedings. On *May 31, 2025*, Plaintiff's motion to stay was denied. The eviction was timed to coincide with the critical period in the custody case before Defendant McNeill — the very period during

which Defendant McNeill would cite Plaintiff's homelessness as a basis for denying custody.

49d. *Unlawful Lockout and Property Destruction.* On or about *July 17, 2025*, Defendants Homes of America, Jeremy Cox, Travis Partridge, Individual Brown, and/or their agents — including personnel from Partridge Security LLC — drilled the locks on Plaintiff's manufactured home, entered without notice or consent, and removed and/or destroyed Plaintiff's personal property, including furnishings, documents, clothing, tools, and evidence relevant to these proceedings. The home was declared “abandoned” despite Plaintiff's continuing title ownership and despite no legal proceeding having divested Plaintiff of his ownership interest in the manufactured home itself. Defendant Partridge subsequently texted prospective buyers of Plaintiff's home with false claims of “abandonment,” sabotaging Plaintiff's attempts to sell the titled property and mitigate his losses.

49e. *Water Shutoff and Habitability.* Prior to the eviction, Defendants Shady Oaks and/or Homes of America shut off water service to Plaintiff's unit, rendering the home uninhabitable and forcing displacement — a pattern consistent with their nationwide business model of pressuring manufactured home residents into surrender through utility deprivation and punitive fee escalation.

49f. *Coordinated Timing with Custody Proceedings.* The destruction of Plaintiff's housing was not incidental to the custody proceedings — it was weaponized within them. On *August 9, 2025* — just weeks after the lockout —

Defendant McNeill entered an ex parte order suspending all of Plaintiff's parenting time. On *September 28, 2025*, Defendant McNeill entered a custody order granting Defendant Watson 100% custody and zero parenting time to Plaintiff. Upon information and belief, Plaintiff's lack of stable housing — directly caused by Defendants' coordinated conduct — was cited or considered as a factor militating against custody. The temporal coordination between the housing destruction (July 2025) and the custody destruction (August–September 2025) is not coincidental: it is the product of a conspiracy between judicial actors (McNeill and Hoopes) and private actors (Watson, Shady Oaks, Homes of America, Alden Global Capital, and Cox).

49g. *The McNeill-Hoopes Partnership*. Defendant McNeill and Defendant Hoopes were law partners at the firm of *Ladas, Hoopes & McNeill*, located at 435 Whitehall Road, Muskegon, Michigan — the same street on which Plaintiff's home was located. Their professional relationship creates at minimum an appearance of impropriety and at maximum a coordinated conspiracy to strip Plaintiff of both housing and custody simultaneously across two divisions of the same courthouse. Neither judge disclosed this relationship. Neither judge recused. The result: Plaintiff lost his home in Hoopes's courtroom and lost his child in McNeill's courtroom within weeks of each other.

## V. COUNT I: DEPRIVATION OF SUBSTANTIVE DUE PROCESS

(42 U.S.C. § 1983 — Fourteenth Amendment)

### Against All Defendants

50. Plaintiff repeats and incorporates by reference all preceding paragraphs as though fully set forth herein.

51. The right of a parent to the “care, custody, and control” of his child is “perhaps the oldest of the fundamental liberty interests recognized by this Court.” *Troxel v. Granville*, 530 U.S. 57, 65 (2000). *See also Stanley v. Illinois*, 405 U.S. 645 (1972); *Santosky v. Kramer*, 455 U.S. 745, 753 (1982).

52. Government interference with a fundamental liberty interest must survive *strict scrutiny* — it must be narrowly tailored to serve a compelling government interest. *Washington v. Glucksberg*, 521 U.S. 702, 720–21 (1997).

53. Defendants’ actions — entering *ex parte* orders suspending ALL parenting time without sworn evidence of imminent danger, maintaining a total separation for 248+ consecutive days, and blocking access to the courts through a \$250 bond and a retaliatory directive — constitute a *total deprivation* of Plaintiff’s fundamental liberty interest in his parental relationship with L.D.W.

54. No compelling government interest justifies this prolonged, complete deprivation. No evidence of imminent danger was presented. No best-interest-factor hearing was conducted under MCL 722.23. No clear and convincing evidence was offered. To the contrary, the objective evidence affirmatively

disproves any danger: Plaintiff's court-ordered drug screen returned *negative*; his initial HealthWest psychological evaluation returned "*all zeros*" (no clinical diagnoses, no findings of concern); and *multiple police investigations* into allegations made by the Watson family produced *zero substantiated findings* against Plaintiff. The deprivation was arbitrary, conscience-shocking, and without rational justification.

55. The Sixth Circuit recognizes substantive due process protection for parent-child relationships. *Doe v. Claiborne County*, 103 F.3d 495, 506 (6th Cir. 1996). State actions that "shock the conscience" or are "arbitrary in the constitutional sense" violate substantive due process. *County of Sacramento v. Lewis*, 523 U.S. 833, 846 (1998). *See also Kovacic v. Cuyahoga Cty. Dept of Children & Family Servs.*, 606 F.3d 301, 310 (6th Cir. 2010) (holding that removal of a child from parental custody without procedurally adequate due process violates substantive due process); *Bartell v. Lohiser*, 215 F.3d 550, 557 (6th Cir. 2000) (holding that parental right to custody is fundamental and removal without meeting strict scrutiny is unconstitutional).

56. A 230-plus-day total separation of a father from his young child — imposed without a hearing, maintained through a pattern of 24 ex parte orders, enforced by a \$250 access barrier, and cemented by a retaliatory directive not to file — shocks the conscience and is arbitrary in the constitutional sense.

57. Plaintiff has suffered and continues to suffer irreparable injury as a direct and proximate result of Defendants' conduct.

## VI. COUNT II: DEPRIVATION OF PROCEDURAL DUE PROCESS

(42 U.S.C. § 1983 — Fourteenth Amendment)

### Against All Defendants

58. Plaintiff repeats and incorporates by reference all preceding paragraphs as though fully set forth herein.

59. Procedural due process requires, at minimum, (1) adequate notice, (2) a meaningful opportunity to be heard, and (3) a neutral decision-maker, *before* the government deprives a person of a protected liberty or property interest. *Mathews v. Eldridge*, 424 U.S. 319, 333 (1976); *Fuentes v. Shevin*, 407 U.S. 67, 80 (1972) (holding that prior notice and a hearing are required before deprivation of a protected interest); *Goldberg v. Kelly*, 397 U.S. 254, 267–68 (1970) (right to evidentiary hearing before termination of benefits constituting a protected interest).

60. The *Mathews* balancing test weighs three factors:

&emsp;(a) *The private interest affected*: Plaintiff’s interest in the care, custody, and companionship of his child L.D.W. is a *fundamental liberty interest* of the highest order. *Troxel v. Granville*, 530 U.S. 57, 65 (2000);

&emsp;(b) *The risk of erroneous deprivation through current procedures*: The risk is *extreme*. Twenty-four of fifty-five orders (43.6%) were entered without any notice to Plaintiff; five ex parte orders were entered on a single day; the court muted Plaintiff three times at the November 15, 2024 hearing; the court refused to

review an exculpatory police report (NS2505044). These procedures virtually guaranteed erroneous deprivation;

&emsp;(c) *The government's interest, including the burden of additional safeguards*: The government's interest in summary adjudication is *minimal*. No imminent danger was shown. No emergency justified bypassing notice and hearing. The additional safeguard of simply providing notice before ruling would impose virtually zero burden on the court. Yet this minimal safeguard was denied on 24 occasions.

61. Defendant McNeill deprived Plaintiff of his fundamental liberty interest by:

&emsp;(a) Issuing 24 *ex parte orders* (43.6% of all orders) without notice to Plaintiff;

&emsp;(b) Entering five (5) *ex parte orders* on August 8, 2025, suspending ALL parenting time without any notice or hearing;

&emsp;(c) *Muting Plaintiff three (3) times* at the November 15, 2024 Show Cause hearing, physically preventing him from presenting his defense;

&emsp;(d) *Refusing to review* the exculpatory police report (NS2505044);

&emsp;(e) Failing to appoint counsel before imposing incarceration for contempt, in violation of *Mead v. Batchlor*, 435 Mich. 480 (1990);

&emsp;(f) Self-ruling on her own disqualification motion in violation of MCR 2.003(D), depriving Plaintiff of a neutral decision-maker;

&emsp;(g) *Sending a biasing letter to the HealthWest evaluator* after the first evaluation returned “all zeros” (no clinical findings), resulting in a materially different second evaluation — thereby corrupting the evidentiary record and depriving Plaintiff of a fair evaluation by a neutral expert. *See Ward v. Village of Monroeville*, 409 U.S. 57 (1972); *In re Murchison*, 349 U.S. 133 (1955) (fair trial requires a fair tribunal);

&emsp;(h) *Basing the August 8, 2025 ex parte suspension of all parenting time on an illegally obtained recording* made by Lori Watson in violation of MCL 750.539c (felony eavesdropping), thereby relying on evidence that is constitutionally inadmissible under *Mapp v. Ohio*, 367 U.S. 643 (1961);

&emsp;(i) *Reviewing evidence in chambers without the parties present*. A USB drive containing recordings was reviewed in chambers — off the record, without either party present, and without affording Plaintiff any opportunity to examine, challenge, or respond to the evidence. The fundamental right to confront and cross-examine evidence used against a party is a core component of due process. *Crawford v. Washington*, 541 U.S. 36, 61 (2004) (holding that the right to confront adverse evidence is procedurally indispensable); *Goldberg v. Kelly*, 397 U.S. 254, 270 (1970) (due process requires “the opportunity to confront and cross-examine adverse witnesses”). The off-record handling of this evidence — which then formed the basis for suspending Plaintiff’s parenting time — rendered the resulting orders fundamentally unfair.

62. The systematic denial of notice and hearing before depriving Plaintiff of his fundamental liberty interest constitutes a per se violation of procedural due process. The Supreme Court in *Santosky v. Kramer*, 455 U.S. 745, 747–48 (1982), held that even when a State provides a hearing, the Due Process Clause demands a heightened standard of proof — clear and convincing evidence — before parental rights may be terminated. Here, the State did not merely apply the wrong standard of proof; it provided *no hearing at all* for the 24 ex parte orders that collectively effected a de facto termination of Plaintiff’s parental relationship. If clear and convincing evidence is the constitutional floor for terminating parental rights *with* process, then terminating those same rights *without any process whatsoever* is a fortiori unconstitutional.

63. As a direct and proximate result, Plaintiff has suffered 59 days of incarceration, 248+ days of separation from his child, loss of two jobs, loss of two homes, and severe emotional distress.

## **VII. COUNT III: DENIAL OF EQUAL PROTECTION**

**(42 U.S.C. § 1983 — Fourteenth Amendment)**

### **Against All Defendants**

64. Plaintiff repeats and incorporates by reference all preceding paragraphs as though fully set forth herein.

65. The Equal Protection Clause of the Fourteenth Amendment prohibits the government from denying any person “the equal protection of the laws.” Even under rational basis review, government action must bear a rational relationship to

a legitimate government interest. If sex-based classification applies, intermediate scrutiny applies. *Craig v. Boren*, 429 U.S. 190 (1976).

66. Alternatively, Plaintiff proceeds under a “class of one” theory of equal protection. Where a government actor intentionally treats one person differently from others similarly situated without any rational basis, the Equal Protection Clause is violated. *Village of Willowbrook v. Olech*, 528 U.S. 562, 564 (2000).

67. Judge McNeill’s treatment of Plaintiff versus Watson demonstrates systematic, one-directional disparate treatment as set forth in Paragraph 39 above. Every procedural advantage was afforded to Watson; every procedural detriment was imposed on Plaintiff. Plaintiff’s filings were rejected or subject to a \$250 bond; Watson’s filings were accepted and acted upon the same day. Plaintiff was jailed for 59 days; Watson has never been sanctioned despite documented violations.

68. This one-directional pattern cannot be explained by any legitimate government interest and is indicative of impermissible bias based on sex, marital status, or pro se status — or a combination thereof. The disparity is further exacerbated by the fact that Defendant Watson was employed for *nine (9) years* in the *Kent County Prosecutor’s Office, Family Court Division*, giving her insider knowledge of family court procedures, tactical filing strategies, and relationships with court personnel. This concealed expertise was never disclosed to the court, creating an asymmetric advantage that the court’s disparate treatment then amplified into a constitutional violation.

69. As a direct and proximate result, Plaintiff has suffered concrete injuries including loss of parenting time, financial penalties, incarceration, and deprivation of his fundamental rights.

## **VIII. COUNT IV: FIRST AMENDMENT RETALIATION**

**(42 U.S.C. § 1983 — First Amendment, Incorporated via Fourteenth Amendment)**

### **Against Defendant McNeill**

70. Plaintiff repeats and incorporates by reference all preceding paragraphs as though fully set forth herein.

71. The First Amendment guarantees “the right of the people . . . to petition the Government for a redress of grievances.” This right is incorporated against the states through the Fourteenth Amendment. The First Amendment also protects the right of a parent to communicate with his child. *Troxel v. Granville*, 530 U.S. 57 (2000). The intimate association between parent and child is among the relationships protected by the First Amendment’s freedom of association. *Roberts v. U.S. Jaycees*, 468 U.S. 609, 617–18 (1984) (recognizing that “choices to enter into and maintain certain intimate human relationships must be secured against undue intrusion by the State” as a fundamental element of personal liberty); *see also M.L.B. v. S.L.J.*, 519 U.S. 102, 116 (1996).

72. A state actor engages in unlawful First Amendment retaliation when: (1) the plaintiff engaged in constitutionally protected conduct; (2) the state actor took an adverse action that would deter a person of ordinary firmness from continuing

to engage in that conduct; and (3) the adverse action was motivated at least in part by the plaintiff's protected conduct. *Thaddeus-X v. Blatter*, 175 F.3d 378, 394 (6th Cir. 1999) (en banc).

73. *Retaliation for Protected Speech — Birthday Messages*: On or about November 2025, Plaintiff sent birthday messages to his child L.D.W. through the court-approved AppClose communication platform. On November 26, 2025, Defendant McNeill found Plaintiff in contempt and imposed *45 days of incarceration* solely for sending those birthday messages. The contempt finding was predicated on the content of Plaintiff's speech. No finding was made that the messages caused any harm. The disproportionate severity — 45 days for birthday wishes — evidences retaliatory intent. A 45-day sentence for birthday messages would deter any person of ordinary firmness from communicating with his child.

74. *Retaliation for Petitioning — “Do Not File Anymore”*: Judge McNeill stated to Plaintiff, in substance: “Do not file anymore, I will not look at it.” This statement, combined with the \$250 bond imposed on new motions, constitutes direct retaliation against Plaintiff's exercise of his right to petition the court for redress. The retaliatory timing — the bond was imposed after Plaintiff filed motions challenging the ex parte orders — further demonstrates retaliatory motive. *See Crawford-El v. Britton*, 523 U.S. 574 (1998).

75. *Access to Courts*: The Supreme Court has held that States cannot deny access to courts based on inability to pay when fundamental rights are at stake. *Boddie v. Connecticut*, 401 U.S. 371, 383 (1971). Meaningful access to courts is a

constitutional right. *Bounds v. Smith*, 430 U.S. 817 (1977). The \$250 bond, combined with the directive to stop filing, creates a *complete denial of access* to the courts for a litigant seeking to protect his fundamental parental rights.

76. The chilling effect of the 45-day incarceration for birthday messages and the retaliatory directive deters Plaintiff and all similarly situated parents from exercising constitutionally protected rights.

77. As a direct and proximate result of Defendant McNeill's First Amendment retaliation, Plaintiff has suffered 45 days of incarceration, loss of employment, the inability to access the courts, and the ongoing chilling effect on his constitutionally protected rights.

## **IX. COUNT V: CONSPIRACY TO DEPRIVE CIVIL RIGHTS**

**(42 U.S.C. § 1985(3))**

### **Against All Defendants**

78. Plaintiff repeats and incorporates by reference all preceding paragraphs as though fully set forth herein.

79. 42 U.S.C. § 1985(3) creates a cause of action when two or more persons conspire to deprive any person of the equal protection of the laws or of equal privileges and immunities under the laws. *Griffin v. Breckenridge*, 403 U.S. 88, 102–03 (1971). A § 1985(3) conspiracy does not require that the conspirators be state actors.

80. The elements of a § 1985(3) claim are: (1) a conspiracy; (2) for the purpose of depriving a person of equal protection or equal privileges; (3) an act in furtherance of the conspiracy; and (4) resulting injury or deprivation of rights. *Id.*

81. *Element 1 — Conspiracy (Agreement)*: The temporal coordination pattern — Watson files, McNeill rules the same day without notice to Plaintiff, Berry assists Watson in drafting filings as a non-attorney — repeated across months, establishes an implied agreement through circumstantial evidence. Circumstantial evidence is sufficient to establish conspiracy. *Halberstam v. Welch*, 705 F.2d 472 (D.C. Cir. 1983). Berry’s voicemail to Plaintiff (Item #6) constitutes direct evidence of coordination outside the formal court record.

82. *Element 2 — Discriminatory Purpose*: The conspiracy was directed at depriving Plaintiff of his fundamental liberty interest in his parental relationship and his right to equal protection. The one-directional benefit pattern — every coordinated action exclusively benefited Watson and harmed Plaintiff — demonstrates discriminatory purpose. The conspiracy was motivated by class-based animus against Plaintiff as an unwed father and pro se litigant.

83. *Element 3 — Overt Acts*: Each ex parte order, each same-day ruling, and each Berry-drafted filing constitutes an overt act in furtherance of the conspiracy. The five ex parte orders entered on August 8, 2025 alone constitute five overt acts. Additional overt acts include: the ex parte PPO grant of December 3, 2023; the ex parte custody modification of July 17, 2025; the contempt incarcerations of November 15, 2024 and November 26, 2025. The *illegal recording* made by Lori

Watson (Emily's mother) in violation of MCL 750.539c, which was subsequently used as the basis for the August 8, 2025 ex parte suspension of all parenting time, constitutes a further overt act — and an independently criminal one. The submission of this feloniously obtained evidence to the court, and the court's reliance upon it, demonstrates the depth of coordination among the conspirators.

84. *Element 4 — Injury*: Plaintiff has suffered 248+ consecutive days of complete separation from his child, 59 days of incarceration, loss of two jobs, loss of two homes, severe emotional distress, and deprivation of multiple constitutional rights.

85. Under *Dennis v. Sparks*, 449 U.S. 24 (1980), private parties who conspire with a judge to deprive others of constitutional rights act under color of state law and are liable under § 1983. Judicial immunity does not extend to co-conspirators — it is personal to the judge. *Id.* at 28–29. Neither Watson nor Berry has any judicial immunity whatsoever.

## **X. COUNT VI: FOURTH AMENDMENT — UNREASONABLE SEIZURE OF PERSON**

86. Plaintiff repeats and re-alleges each and every allegation set forth in the preceding paragraphs as though fully set forth herein.

87. The Fourth Amendment, applicable to the states through the Fourteenth Amendment, prohibits unreasonable seizures of persons. *Albright v. Oliver*, 510 U.S. 266, 274 (1994). Incarceration constitutes a seizure of the person. *See Baker v. McCollan*, 443 U.S. 137, 144 (1979).

88. Judge McNeill ordered Plaintiff incarcerated for civil contempt on November 15, 2024 and November 26, 2025, resulting in *59+ days of incarceration* without adequate purge conditions, without the procedural safeguards required by *Turner v. Rogers*, 564 U.S. 431 (2011), and without a finding of willful noncompliance based on the ability to comply. Plaintiff was incarcerated despite having no ability to comply with the purge conditions imposed.

89. Civil contempt incarceration that is punitive in nature, rather than coercive — as where the contemnor lacks the ability to comply with the purge condition — constitutes criminal punishment imposed without criminal procedural protections, in violation of the Fourth Amendment’s protection against unreasonable seizure. The seizure of Plaintiff’s person was unreasonable because it was based on inability to pay rather than willful refusal.

90. As a direct and proximate result of Defendants’ Fourth Amendment violations, Plaintiff suffered loss of liberty, loss of employment, and severe emotional distress.

## **XI. COUNT VII: SIXTH AMENDMENT — INCARCERATION WITHOUT RIGHT TO COUNSEL**

91. Plaintiff repeats and re-alleges each and every allegation set forth in the preceding paragraphs as though fully set forth herein.

92. The Sixth Amendment, applicable to the states through the Fourteenth Amendment, provides that in criminal prosecutions the accused shall have the

assistance of counsel. Under *Argersinger v. Hamlin*, 407 U.S. 25, 37 (1972), no person may be imprisoned unless afforded the right to counsel. The Supreme Court in *Turner v. Rogers*, 564 U.S. 431, 442 (2011), held that even in civil contempt proceedings, “where the opposing parent is unrepresented and the State is not, the Due Process Clause does not automatically require the provision of counsel” — but *does* require substitute procedural safeguards including notice, the opportunity to respond, and judicial findings on the record concerning ability to pay. *Id.* at 447–48.

93. Judge McNeill incarcerated Plaintiff for civil contempt *without providing appointed counsel*, without making on-the-record findings of ability to comply, and without providing any of the substitute procedural safeguards required by *Turner*. This deprivation of liberty without either counsel or adequate procedural safeguards violated Plaintiff’s rights under the Sixth and Fourteenth Amendments.

94. As a direct and proximate result of Defendants’ Sixth Amendment violations, Plaintiff was incarcerated without the constitutional protections to which he was entitled.

## **XII. COUNT VIII: DENIAL OF ACCESS TO COURTS**

**(42 U.S.C. § 1983 — First Amendment and Due Process Clause)**

**Against Defendant McNeill**

**(42 U.S.C. § 1983 — First and Fourteenth Amendments)**

**Against Defendant McNeill**

95. Plaintiff repeats and incorporates by reference all preceding paragraphs as though fully set forth herein.

96. Access to the courts is a fundamental constitutional right. *Boddie v. Connecticut*, 401 U.S. 371, 383 (1971) (a State may not pre-empt the right to access the judicial process without affording all citizens access to the means it has prescribed for doing so); *Bounds v. Smith*, 430 U.S. 817, 821 (1977) (meaningful access to courts is a constitutional right). Where official acts frustrate a plaintiff's ability to seek relief in court, a freestanding access-to-courts claim exists under § 1983. *Christopher v. Harbury*, 536 U.S. 403, 413–15 (2002) (recognizing “backward-looking” access-to-courts claims where official action has caused the loss or inadequate settlement of a meritorious case, and “forward-looking” claims where official action prevents a plaintiff from preparing or filing suit).

97. Defendant McNeill engaged in a systematic course of conduct that denied Plaintiff access to the courts:

&emsp;(a) *\$250 Filing Bond (May 16, 2025)*. Judge McNeill imposed a \$250 filing deposit as a precondition to Plaintiff filing any future motions. This bond was imposed on a pro se litigant who had already lost two jobs and two

homes as a direct result of the Court’s own orders, rendering him unable to pay. When fundamental rights are at stake and the courts are the exclusive forum for their vindication, conditioning access on the payment of fees an indigent litigant cannot afford violates due process. *Boddie v. Connecticut*, 401 U.S. 371 (1971);

&emsp;(b) “*Do Not File Anymore*” Directive. Judge McNeill stated on the record, in substance: “Do not file anymore, I will not look at it.” This is not a case management order or a vexatious-litigant sanction issued pursuant to proper procedures. It is a Constitutional Right | Clearly Established Since |

|                                                                              |                                                                                         |
|------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------|
| <b>Right to notice and hearing before deprivation of fundamental liberty</b> |                                                                                         |
| <b><i>Mathews v. Eldridge</i>, 424 U.S. 319 (1976)</b>                       |                                                                                         |
| Fundamental right to parent                                                  | <i>Stanley v. Illinois</i> , 405 U.S. 645 (1972);<br><i>Troxel</i> , 530 U.S. 57 (2000) |
| Right to counsel before incarceration for contempt                           | <i>Mead v. Batchlor</i> , 435 Mich. 480 (1990)                                          |
| First Amendment protection of parent-child speech                            | <i>Troxel</i> , 530 U.S. 57 (2000)                                                      |
| Right of access to courts                                                    | <i>Bounds v. Smith</i> , 430 U.S. 817 (1977)                                            |
| Equal protection against systematic disparate treatment                      | <i>Village of Willowbrook v. Olech</i> , 528 U.S. 562 (2000)                            |

107. No reasonable official could have believed that issuing 24 ex parte orders, incarcerating a father for 45 days for birthday messages, muting a litigant three

times, refusing to review exculpatory evidence, or telling a litigant “Do not file anymore” was lawful. These are not close calls on the margins of constitutional law.

108. Defendants Watson and Berry are private parties, not government officials. Private parties cannot invoke qualified immunity. *Wyatt v. Cole*, 504 U.S. 158, 168–69 (1992).

109. Qualified immunity therefore does not shield any Defendant.

### **G. Plaintiff Has Article III Standing**

110A. Article III standing requires: (1) an injury in fact that is concrete and particularized; (2) a causal connection between the injury and the conduct complained of; and (3) a likelihood that the injury will be redressed by a favorable decision. *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 560–61 (1992).

110B. Plaintiff’s injuries are concrete, particularized, and severe:

&emsp;(a) *59 days of incarceration* — a physical deprivation of liberty that is the most concrete injury cognizable at law;

&emsp;(b) *Loss of two jobs* — IndiGrow LLC terminated Plaintiff on June 2, 2024, and Plaintiff lost his USPS weekend carrier position — as a direct, documented consequence of the incarceration imposed by Defendants;

&emsp;(c) *Loss of two homes* — Plaintiff lost housing as a direct result of the incarceration and resulting inability to pay rent;

&emsp;(d) *248+ consecutive days of total separation* from his child L.D.W. — the destruction of a fundamental liberty interest during the child’s most critical developmental period (ages 2–4);

&emsp;(e) *\$250 filing bond* — a concrete financial barrier to court access, paid or unpayable.

110C. Each injury is directly traceable to Defendants’ conduct — the ex parte orders, the contempt findings, the \$250 bond, and the coordinated conspiracy. A favorable decision — declaratory relief, injunctive relief requiring reassignment and restoration of parenting time, and compensatory damages — would directly redress these injuries.

110D. Nominal damages alone confer Article III standing. *Uzuegbunam v. Preczewski*, 592 U.S. 279 (2021). Plaintiff’s injuries extend far beyond the nominal — but even the constitutional violations standing alone satisfy Article III. No standing challenge is viable.

## **H. The Statute of Limitations Does Not Bar Any Claim — Continuing Violation Doctrine**

110E. Section 1983 actions in Michigan are governed by Michigan’s three-year statute of limitations for personal injury. *Owens v. Okure*, 488 U.S. 235, 249–50 (1989); MCL 600.5805(2). Federal law governs the accrual date. *Wallace v. Kato*, 549 U.S. 384, 388 (2007).

110F. All claims are timely under the *continuing violation doctrine*. The Sixth Circuit recognizes that where a defendant’s conduct constitutes a “continuing

violation” — a series of related acts, at least one of which falls within the limitations period — the entire course of conduct is actionable. *Tolbert v. Ohio Dep’t of Transportation*, 172 F.3d 934, 940 (6th Cir. 1999); *Sharpe v. Cureton*, 319 F.3d 259, 267 (6th Cir. 2003).

110G. The constitutional violations alleged here are not discrete, completed acts but an *ongoing, continuous deprivation* that persists to this day:

&emsp;(a) The total separation of Plaintiff from L.D.W. — now exceeding 248 consecutive days — is a *continuing deprivation* of Plaintiff’s fundamental liberty interest. Each additional day of enforced separation is a new injury. The deprivation has not ceased;

&emsp;(b) The \$250 filing bond remains in effect, constituting a *continuing denial of access* to the courts. Each day the bond blocks Plaintiff from filing constitutes a new violation;

&emsp;(c) The “Do not file anymore” directive has not been rescinded. Its chilling effect on Plaintiff’s First Amendment rights is *ongoing*;

&emsp;(d) The ex parte orders suspending all parenting time remain in force. Their effects are *continuing* — not historical;

&emsp;(e) The conspiracy among Defendants is *ongoing*. Watson continues to benefit from the ex parte orders. McNeill continues to preside. Berry continues to assist Watson. The conspiracy has not terminated.

110H. Even absent the continuing violation doctrine, the most significant constitutional deprivations occurred well within the three-year limitations period:

the five ex parte orders of August 8, 2025; the 45-day incarceration of November 26, 2025; the \$250 bond of May 2025; and the ongoing total separation beginning July 29, 2025. No statute of limitations defense is viable as to any count.

## **XV. PRAYER FOR RELIEF**

WHEREFORE, Plaintiff Andrew James Pigors respectfully prays that this Court grant the following relief:

### **A. Declaratory Relief**

110. A declaratory judgment pursuant to 28 U.S.C. § 2201 that:

&emsp;(a) Defendant McNeill violated Plaintiff's substantive and procedural due process rights under the Fourteenth Amendment by issuing 24 ex parte orders without notice or hearing and by maintaining a total separation of Plaintiff from his child for 248+ consecutive days;

&emsp;(b) Defendant McNeill violated Plaintiff's First Amendment rights by incarcerating Plaintiff for 45 days for sending birthday messages to his child and by retaliating against Plaintiff's exercise of his right to petition the court;

&emsp;(c) Defendant McNeill violated Plaintiff's right to equal protection by systematically applying different procedural standards to Plaintiff and Defendant Watson;

&emsp;(d) The \$250 bond requirement is an unconstitutional barrier to court access in violation of the First Amendment and *Boddie v. Connecticut*, 401 U.S. 371 (1971);

&emsp;(e) Defendants Watson, Berry, and McNeill conspired to deprive Plaintiff of his civil rights in violation of 42 U.S.C. § 1985(3);

&emsp;(f) Defendant McNeill violated Plaintiff's Fourth Amendment right to be free from unreasonable seizure by ordering Plaintiff incarcerated without adequate purge conditions and without a finding of willful noncompliance;

&emsp;(g) Defendant McNeill violated Plaintiff's Sixth Amendment right to counsel (as applicable through Due Process in civil contempt) by incarcerating Plaintiff without providing appointed counsel or the substitute procedural safeguards required by *Turner v. Rogers*, 564 U.S. 431 (2011);

&emsp;(h) Defendant McNeill violated Plaintiff's fundamental right of access to courts by imposing a \$250 filing bond, issuing a Authority | Proposition |

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| <b><i>Troxel v. Granville</i>, 530 U.S. 57 (2000)</b> |                                               |                                                  |                                               |
| <b>Parental liberty = oldest fundamental right</b>    |                                               |                                                  |                                               |
| <i>Santosky v. Kramer</i> , 455 U.S. 745 (1982)       | Clear and convincing evidence for termination | <i>Stanley v. Illinois</i> , 405 U.S. 645 (1972) | Unwed fathers have protected liberty interest |

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| <b>Parental liberty =<br/>oldest<br/>fundamental<br/>right</b> |                                                    |                                                                |                                                          |
| <i>Washington v. Glucksberg</i> , 521 U.S. 702 (1997)          | Fundamental rights require strict scrutiny         | <i>Mathews v. Eldridge</i> , 424 U.S. 319 (1976)               | Three-part balancing test for procedural due process     |
| <i>Dennis v. Sparks</i> , 449 U.S. 24 (1980)                   | Private co-conspirators of judge NOT immune        | <i>Mireles v. Waco</i> , 502 U.S. 9 (1991)                     | No immunity for acts in complete absence of jurisdiction |
| <i>Stump v. Sparkman</i> , 435 U.S. 349 (1978)                 | Judicial immunity framework — jurisdictional limit | <i>Forrester v. White</i> , 484 U.S. 219 (1988)                | No immunity for non-judicial/ administrative acts        |
| <i>Pulliam v. Allen</i> , 466 U.S. 522 (1984)                  | Injunctive relief available against judges         | <i>Exxon Mobil v. Saudi Basic Indus.</i> , 544 U.S. 280 (2005) | Rooker-Feldman is narrow — “source of injury” test       |
| <i>McCormick v. Braverman</i> , 451 F.3d 382 (6th Cir. 2006)   | 6th Circuit applies Rooker-Feldman narrowly        | <i>Sprint Communications v. Jacobs</i> , 571 U.S. 69 (2013)    | Younger narrowed to three exceptional                    |

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| <b>Parental liberty =<br/>oldest<br/>fundamental<br/>right</b> |                                                                     |                                                              |                                                                        |
| <i>Younger v. Harris</i> ,<br>401 U.S. 37<br>(1971)            | Abstention<br>doctrine and bad<br>faith exception                   | <i>Kugler v. Helfant</i> ,<br>421 U.S. 117<br>(1975)         | Bad faith<br>exception to<br>Younger<br>abstention                     |
| <i>Heck v. Humphrey</i> ,<br>512 U.S. 477<br>(1994)            | Bars only claims<br>“necessarily<br>implying”<br>conviction invalid | <i>Schreiber v. Moe</i> ,<br>596 F.3d 323 (6th<br>Cir. 2010) | Process claims<br>distinct from<br>outcome — Heck<br>inapplicable      |
| <i>Harlow v.<br/>Fitzgerald</i> , 457<br>U.S. 800 (1982)       | Qualified<br>immunity —<br>“clearly<br>established” test            | <i>Pearson v.<br/>Callahan</i> , 555<br>U.S. 223 (2009)      | Two-prong<br>qualified<br>immunity analysis                            |
| <i>Wyatt v. Cole</i> , 504<br>U.S. 158 (1992)                  | Private parties<br>cannot invoke<br>qualified<br>immunity           | <i>Boddie v.<br/>Connecticut</i> , 401<br>U.S. 371 (1971)    | Financial barriers<br>violate due<br>process for<br>fundamental rights |
| <i>Bounds v. Smith</i> ,<br>430 U.S. 817<br>(1977)             | Meaningful access<br>to courts is<br>constitutional right           | <i>Smith v. Wade</i> , 461<br>U.S. 30 (1983)                 | Punitive damages<br>under § 1983 for                                   |

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| <b>Parental liberty =<br/>oldest<br/>fundamental<br/>right</b>          |                                                               |                                                                          |                                                              |
|                                                                         |                                                               |                                                                          | reckless<br>indifference                                     |
| <i>Carey v. Piphus</i> ,<br>435 U.S. 247<br>(1978)                      | Nominal damages<br>for procedural due<br>process violations   | <i>Uzuegbunam v.<br/>Preczewski</i> , 592<br>U.S. 279 (2021)             | Nominal damages<br>sufficient for<br>Article III<br>standing |
| <i>Village of<br/>Willowbrook v.<br/>Olech</i> , 528 U.S.<br>562 (2000) | Class-of-one equal<br>protection theory                       | <i>Thaddeus-X v.<br/>Blatter</i> , 175 F.3d<br>378 (6th Cir.<br>1999)    | First Amendment<br>retaliation three-<br>element test        |
| <i>Gibson v.<br/>Berryhill</i> , 411 U.S.<br>564 (1973)                 | Abstention<br>inappropriate<br>where state forum<br>is biased | <i>Monell v. Dept of<br/>Social Services</i> ,<br>436 U.S. 658<br>(1978) | § 1983 against<br>officials acting<br>under color of law     |
| <i>Griffin v.<br/>Breckenridge</i> , 403<br>U.S. 88 (1971)              | § 1985(3)<br>elements                                         | <i>Adickes v. S.H.<br/>Kress &amp; Co.</i> , 398<br>U.S. 144 (1970)      | Conspiracy with<br>state actor = state<br>action             |

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| <b>Parental liberty =<br/>oldest<br/>fundamental<br/>right</b> |                                                   |                                                               |                                                                         |
| <i>West v. Atkins</i> , 487 U.S. 42 (1988)                     | Color of state law<br>— state actor<br>definition | <i>Doe v. Claiborne County</i> , 103 F.3d 495 (6th Cir. 1996) | 6th Circuit<br>substantive due<br>process for parent-<br>child          |
| <i>County of Sacramento v. Lewis</i> , 523 U.S. 833 (1998)     | Conscience-<br>shocking standard                  | <i>Craig v. Boren</i> , 429 U.S. 190 (1976)                   | Intermediate<br>scrutiny for sex-<br>based<br>classification            |
| <i>Patsy v. Board of Regents</i> , 457 U.S. 496 (1982)         | No exhaustion<br>required for §<br>1983           | <i>Mead v. Batchlor</i> , 435 Mich. 480 (1990)                | Right to counsel<br>before<br>incarceration for<br>contempt             |
| <i>Crawford-El v. Britton</i> , 523 U.S. 574 (1998)            | Retaliatory motive<br>evidence                    | <i>Roberts v. U.S. Jaycees</i> , 468 U.S. 609 (1984)          | Freedom of<br>intimate<br>association —<br>parent-child<br>relationship |

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| <b>Parental liberty =<br/>oldest<br/>fundamental<br/>right</b> |                                                             |                                                       |                                                                                       |
| <i>Crawford v. Washington</i> , 541 U.S. 36 (2004)             | Right to confront adverse evidence — procedural due process | <i>Christopher v. Harbury</i> , 536 U.S. 403 (2002)   | Access-to-courts claim — official acts frustrating court access                       |
| <i>M.L.B. v. S.L.J.</i> , 519 U.S. 102 (1996)                  | Access to courts in parental rights proceedings             | 42 U.S.C. § 1983                                      | Deprivation of rights under color of law                                              |
| 42 U.S.C. § 1985(3)                                            | Conspiracy to deprive civil rights                          | 42 U.S.C. § 1988                                      | Costs and fees for prevailing party                                                   |
| 28 U.S.C. § 1331                                               | Federal question jurisdiction                               | 28 U.S.C. § 1343(a)(3)–(4)                            | Civil rights jurisdiction                                                             |
| 28 U.S.C. § 1391(b)                                            | Venue                                                       | 28 U.S.C. § 1746                                      | Unsworn declaration under penalty of perjury                                          |
| 28 U.S.C. § 1915                                               | In forma pauperis proceedings                               | <i>Catz v. Chalker</i> , 142 F.3d 279 (6th Cir. 1998) | § 1983 viable remedy for state interference with parental custody; domestic relations |

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| <b>Parental liberty =<br/>oldest<br/>fundamental<br/>right</b> |                                                                                                   |                                                                |                                                               |
|                                                                |                                                                                                   |                                                                | exception<br>inapplicable                                     |
| <i>Ankenbrandt v. Richards</i> , 504 U.S. 689 (1992)           | Domestic relations exception is narrow — does not bar federal § 1983 claims in family law context | <i>Guertin v. Michigan</i> , 912 F.3d 907 (6th Cir. 2019)      | Substantive due process / state-created danger in 6th Circuit |
| <i>Pittman v. Cuyahoga Cty.</i> , 640 F.3d 716 (6th Cir. 2011) | § 1983 viability in child welfare context                                                         | <i>Kovacik v. Cuyahoga Cty.</i> , 606 F.3d 301 (6th Cir. 2010) | Procedurally inadequate child removal violates due process    |
| <i>Bartell v. Lohiser</i> , 215 F.3d 550 (6th Cir. 2000)       | Strict scrutiny required for parental rights interference                                         | <i>Haines v. Kerner</i> , 404 U.S. 519 (1972)                  | Pro se filings must be liberally construed                    |
| <i>Erickson v. Pardus</i> , 551 U.S. 89 (2007)                 | Pro se pleadings held to less stringent standards                                                 | <i>Estelle v. Gamble</i> , 429 U.S. 97 (1976)                  | Pro se complaints not dismissed without                       |

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| <b>Parental liberty =<br/>oldest<br/>fundamental<br/>right</b>          |                                                                             |                                                                   |                                                                                        |
|                                                                         |                                                                             |                                                                   | opportunity to<br>amend                                                                |
| <i>Turner v. Rogers</i> ,<br>564 U.S. 431<br>(2011)                     | Procedural<br>safeguards<br>required for civil<br>contempt<br>incarceration | <i>Fuentes v. Shevin</i> ,<br>407 U.S. 67<br>(1972)               | Prior notice and<br>hearing required<br>before deprivation<br>of protected<br>interest |
| <i>Goldberg v. Kelly</i> ,<br>397 U.S. 254<br>(1970)                    | Right to<br>evidentiary<br>hearing before<br>deprivation                    | <i>Ward v. Village of<br/>Monroeville</i> , 409<br>U.S. 57 (1972) | Judicial bias<br>violates due<br>process — fair<br>trial requires fair<br>tribunal     |
| <i>Caperton v. A.T.<br/>Massey Coal Co.</i> ,<br>556 U.S. 868<br>(2009) | Due process right<br>to recusal of<br>biased judge                          | <i>In re Murchison</i> ,<br>349 U.S. 133<br>(1955)                | Fair trial requires<br>fair and impartial<br>tribunal                                  |
| <i>Moore v. City of<br/>East Cleveland</i> ,                            | Family integrity as<br>constitutional right                                 | <i>Albright v. Oliver</i> ,<br>510 U.S. 266<br>(1994)             | Fourth<br>Amendment<br>seizure analysis —                                              |

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| <b>Parental liberty =<br/>oldest<br/>fundamental<br/>right</b>       |                                                                                  |                                                                                              |                                                                     |
| 431 U.S. 494<br>(1977)                                               |                                                                                  |                                                                                              | incarceration is<br>seizure                                         |
| <i>Argersinger v.<br/>Hamlin</i> , 407 U.S.<br>25 (1972)             | No imprisonment<br>without right to<br>counsel                                   | <i>Baker v.<br/>McCullan</i> , 443<br>U.S. 137 (1979)                                        | Incarceration<br>constitutes seizure<br>of the person               |
| <i>Mapp v. Ohio</i> , 367<br>U.S. 643 (1961)                         | Exclusionary rule<br>— illegally<br>obtained evidence<br>inadmissible            | <i>Wong Sun v.<br/>United States</i> , 371<br>U.S. 471 (1963)                                | Fruit of the<br>poisonous tree<br>doctrine                          |
| <i>People v. Beavers</i> ,<br>393 Mich. 554<br>(1975)                | Michigan<br>application of<br>exclusionary rule<br>to MCL 750.539c<br>recordings | <i>Middlesex County<br/>Ethics Comm. v.<br/>Garden State Bar</i> ,<br>457 U.S. 423<br>(1982) | Adequate state<br>forum requirement<br>for Younger                  |
| <i>Halberstam v.<br/>Welch</i> , 705 F.2d<br>472 (D.C. Cir.<br>1983) | Circumstantial<br>evidence sufficient<br>for conspiracy                          | MCL 750.539c                                                                                 | Michigan felony<br>eavesdropping —<br>all-party consent<br>required |

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| <b>Parental liberty =<br/>oldest<br/>fundamental<br/>right</b>                              |                                                                   |                                                                    |                                                                           |
| <i>Saucier v. Katz</i> ,<br>533 U.S. 194<br>(2001)                                          | Qualified<br>immunity —<br>reasonable officer<br>standard         | <i>Lujan v. Defenders<br/>of Wildlife</i> , 504<br>U.S. 555 (1992) | Article III<br>standing — injury<br>in fact, causation,<br>redressability |
| <i>Owens v. Okure</i> ,<br>488 U.S. 235<br>(1989)                                           | § 1983 uses state<br>personal injury<br>statute of<br>limitations | <i>Wallace v. Kato</i> ,<br>549 U.S. 384<br>(2007)                 | Federal law<br>governs § 1983<br>accrual date                             |
| <i>Tolbert v. Ohio<br/>Dep't of<br/>Transportation</i> ,<br>172 F.3d 934 (6th<br>Cir. 1999) | Continuing<br>violation doctrine<br>in 6th Circuit                | <i>Sharpe v. Cureton</i> ,<br>319 F.3d 259 (6th<br>Cir. 2003)      | Continuing<br>violation — series<br>of related acts                       |
| <i>City of Canton v.<br/>Harris</i> , 489 U.S.<br>378 (1989)                                | Monell —<br>deliberate<br>indifference to<br>known risk           | <i>Owen v. City of<br/>Independence</i> , 445<br>U.S. 622 (1980)   | Municipalities do<br>not enjoy qualified<br>immunity                      |

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| <b>Parental liberty =<br/>oldest<br/>fundamental<br/>right</b> |                                                        |                     |                                                                                      |
| <i>Friedman v. Dozorc</i> , 412 Mich. 1 (1981)                 | Michigan abuse of process elements                     | MCR 2.313(A)(5)     | Discovery sanctions for failure to comply with discovery order                       |
| MCR 3.207(C)(2)                                                | Ex parte orders require sworn facts of imminent danger | MCR 2.003(C)–(D)    | Disqualification procedure — Chief Judge decides if challenged judge does not recuse |
| MCL 552.503                                                    | Friend of the Court statutory investigative authority  | MCL 552.605         | Affirmative duty to disclose income in support proceedings                           |
| MCL 333.26269                                                  | Michigan Medical Records Access Act                    | 42 U.S.C. § 1320d-6 | HIPAA criminal penalties for unauthorized                                            |

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| <b>Parental liberty =<br/>oldest<br/>fundamental<br/>right</b>      |                                                           |              |                                                                |
|                                                                     |                                                           |              | medical records<br>access                                      |
| <i>Hayley v. Dep't of<br/>Corrections</i> , 468<br>Mich. 600 (2003) | IIED —<br>“outrageous”<br>conduct standard<br>in Michigan | MCL 600.2950 | Personal<br>Protection Order<br>statute — scope<br>and purpose |

Respectfully submitted,

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Dated: April 03, 2026

## CERTIFICATE OF SERVICE

I, Andrew James Pigors, Plaintiff, appearing *pro se*, hereby certify that on April 03, 2026, I served a true and correct copy of the foregoing document upon the following parties by first-class U.S. Mail, postage prepaid:

**Emily A. Watson**

2160 Garland Dr

Norton Shores, MI 49441

**Muskegon County Friend of the Court**

**c/o Pamela Rusco**

990 Terrace St

Muskegon, MI 49442

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**Andrew James Pigors**

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Dated: April 03, 2026